



EUROPEAN MEDICINES AGENCY
SCIENCE MEDICINES HEALTH

27 February 2025

European Medicines Agency

European Shortages Monitoring Platform (ESMP) Data access policy

EMA/90987/2025
Version 1.0

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Table of abbreviations

Abbreviation	Full name
API	Application Programming Interface
CAP	Centrally Authorised Products
CCI	Commercially Confidential Information
EC	European Commission
EEA	European Economic Area
EMA	European Medicines Agency
ESMP	European Shortages Monitoring Platform
EU DPR	European Data Protection Regulation
EU	European Union
GDPR	General Data Protection Regulation
GPI	General Public Information
HERA	Health Emergency Preparedness and Response Authority
ISO	International Organization for Standardisation
MAH	Marketing Authorisation Holder
MSSG	Executive Steering Group on Shortages and Safety of Medicinal Products (Medicines Shortages Steering Group)
NAP	Nationally Authorised Products
NCA	National Competent Authority
PD	Personal Data
SPOR	Substance, Product, Organisation, and Referential

1. Executive summary

Addressing the issue of shortages of medicinal products has been a long-standing priority for Member States, European Commission and the European Parliament. The COVID-19 pandemic has exacerbated the problem of shortages of certain medicinal products considered to be critical to address the pandemic and has highlighted the Union's external dependence in terms of domestic production of medicinal products and medical devices, the lack of coordination and the structural limitations in the EU's and Member States' ability to rapidly and effectively react to such challenges during public health emergencies.

The COVID-19 pandemic highlighted the need for coordinated EU-wide crisis management, leading to strengthened frameworks for monitoring and reporting medicinal product shortages. It has demonstrated the need to strengthen the Union's role to be more effective in managing the availability of medicinal products, the availability of medical devices, in vitro diagnostic medical devices and their respective accessories (collectively 'medical devices'). One of the main goals of [Regulation \(EU\) 2022/123](#) (hereafter also referred to as "the Regulation") is to ensure a strengthened framework for monitoring of and reporting on shortages of medicinal products during public health emergencies and major events.

The Regulation aims to empower the European Union (EU) to better prepare for and react to health crises quickly, efficiently, and in a coordinated manner with a view to strategically complementing the efforts of the European Commission, including the Health Emergency Preparedness and Response Authority ('HERA'), and Union agencies, to that end. The European Medicines Agency (EMA) (hereafter also referred to as "the Agency") has a formal role in preparing for and managing crisis situations affecting the European Union (EU) single market for medicines and medical devices. The Regulation formalises some of the structures and processes that EMA set up in the COVID-19 pandemic and assigns new tasks to EMA in the following areas:

- Monitoring and mitigating potential or actual shortages of critical medicinal products and medical devices
- Providing scientific support to the timely development of high quality, safe and effective medicines during public health emergencies
- Ensuring the smooth functioning of EU expert panels to assess certain high-risk medical devices and advise on crisis preparation and management

The Regulation became applicable on 1 March 2022 for medicinal products. It is part of the European Health Union package proposed by the European Commission in November 2020.

EMA works with the European Commission and other EU partners to implement the Regulation. Article 13 of the Regulation states that EMA shall set up, maintain, and manage an information technology (IT) platform, to be known as the European Shortages Monitoring Platform (ESMP), that is capable of processing information on the supply of and demand for critical medicinal products during public health emergencies or major events and, outside of those situations, to allow for reporting on shortages of medicinal products that are likely to lead to public health emergencies or major events. The ESMP should allow national competent authorities (NCAs) to submit and monitor information on unmet demand, including information received from marketing authorisation holders, wholesale distributors and other

persons or legal entities that are authorised or entitled to supply medicinal products to the public, in order to anticipate shortages of medicinal products. To facilitate the coordination role of the Agency, the interoperability of data with existing Member States' IT platforms for monitoring shortages and other systems, as appropriate, is essential to allow the sharing of relevant information with the ESMP to prevent, detect, and manage human medicine shortages in the EU and European Economic Area (EEA). ESMP became fully operational on 29th January 2025.

2. Scope of this guidance

This ESMP Data access policy defines the overall principles for providing access to data held in ESMP in accordance with Article 13(6)(f) of the Regulation, which requires appropriate access levels for the Commission, the Agency, national competent authorities, and the MSSG. Additionally, in alignment with Article 6(6) of the Regulation and EU transparency principles, the policy establishes controlled public access to relevant shortage information through a tiered access framework that reflects varying stakeholder needs and data sensitivity levels.

The policy ensures:

- Mandatory access for regulatory bodies as specified in Article 13(6)(f) of the Regulation
- Publicly accessible web page providing on actual shortages of medicinal products as per Article 6(6) of the Regulation
- Protection of commercially confidential information
- Compliance with data protection regulations

This document has been drafted with the aim of providing transparency and visibility of information on shortages of medicines while protecting commercially confidential information as defined by the Agency based on the [Regulation \(EC\) No 1049/2001](#). Requirements to protect personal data based on [Regulation \(EU\) 2016/679](#) and [Regulation \(EU\) 2018/1725](#).

3. Objectives of the guidance

The ESMP data access policy has been developed with the goal of facilitating the maintenance of and accessibility to information on shortages of human medicinal products in the EU, within the overall aim of promoting and protecting animal and public health and the environment.

Furthermore, this document aims to meet the EU principles of transparency and openness while ensuring compliance with EU personal data protection legislation. The following objectives should be met, by allowing data exchange and providing access to shortages information on human medicinal products:

1. Increasing transparency and availability of and access to shortages information of human medicinal products authorised in the EU;

2. Simplifying the regulatory environment and reducing administrative burden by giving marketing authorisation holders and national competent authorities access to the functionalities of ESMP;
3. Facilitating the proactive identification and prevention of potential medicine shortages that could lead to public health emergencies or major events;
4. Enhancing EMA's continuous monitoring of medicines during both crisis situations and normal circumstances;
5. Supporting the EMA's Executive Steering Group on Shortages and Safety of Medicinal Products (MSSG) by facilitating timely data exchange during MSSG-led preparedness situations;
6. Simplifying the reporting process for marketing authorisation holders by enabling them to routinely report shortages of authorised products through the ESMP;
7. Strengthening the decision making for the European Commission, NCAs and marketing authorisation holders by providing access to data analytics and reports.

4. Characteristics of the guidance

4.1. European Shortages Monitoring Platform (ESMP)

The European Shortages Monitoring Platform (ESMP) is a digital tool created by the EMA to prevent, monitor and manage medicines shortages in the EU/EEA. ESMP aims to facilitate the collection of information from marketing authorisation holders and EU Member States on shortages, supply and demand of critical medicines during crisis situations, and potential supply issues that can lead to such crises. It operates during crises, under MSSG-led preparedness, and in normal circumstances, helping manage and prevent medicinal product shortages. EMA will collect data via the platform from the national competent authorities (NCAs) and marketing authorisation holders (MAHs) to ensure timely responses and efficient management of medicinal product shortages.

The data submitted to the ESMP is fully compliant with the standards developed by the International Organization for Standardization for the identification of medicinal products based on the domains of master data in pharmaceutical regulatory processes, namely substance, product, organisation, and referential data. Therefore, developed using an Agile methodology, the ESMP is designed to be interoperable with Member States' IT systems and MAH's IT systems, facilitating data exchange and streamlining regulatory processes across the EEA/EU.

4.2. Access to ESMP

Access to ESMP for data submission is provided through the ESMP hosted in [this portal](#) ESMP Application Programming Interface (API). Access is based on the ESMP user roles available for each stakeholder group [User guide for MAHs](#) and [User guide for NCAs](#) Section 2.1 and Sections 2.2.

4.2.1. Stakeholder groups

The stakeholders being granted access to ESMP data can be grouped as follows:

- Stakeholders with interest in accessing publicly available information on actual shortages of medicinal products included in the critical medicines lists in cases in which the Agency has assessed the shortage and has provided recommendations to healthcare professionals and patients. This stakeholder group is reserved to the general public, patient and consumers, healthcare professionals and academia.
- Stakeholders with interest in reporting and accessing shortages data on human medicinal products authorised for regulatory purposes. This stakeholder group is reserved to organisations who are required to fulfil their legal responsibilities (i.e. marketing authorisation holders' users) and to fulfil their responsibilities to protect public health (i.e. national competent authority users).
- Stakeholders with interest in managing, monitoring and processing shortages data on human medicinal products authorised for the purpose of shortages management in the EU/EEA. This stakeholder group is reserved to the Agency, the European Commission (in concrete, DG-HERA), and the Executive Steering Group on Shortages and Safety of Medicinal Products (MSSG).

Note: access to data required by any other organisation not falling in the above stakeholder groups is defined on a case-by-case basis and in relation to the specific declared interest.

4.2.2. ESMP general principles

ESMP gives the access to report availability, supply and demand information on human medicinal products authorised while protecting certain public and private interests, such as personal data and commercially confidential information as defined by the Agency based on [Regulation \(EC\) No 1049/2001](#)..

The data elements collected in ESMP for human medicinal products are defined based on and comply with the reporting requirements specified in the Regulation. This includes information about potential or actual shortages, supply and demand data, and other relevant details needed for preventing, monitoring and managing medicine availability in the EU/EEA. The required data elements are outlined in reference documents – the [ESMP Implementation guide for MAHs](#) and [ESMP Implementation guide for NCAs](#) - which serve as guidance documents detailing the data specifications and formats that will be collected through ESMP's interface and ESMP API. Additional ISO data elements may be implemented in subsequent iterations of ESMP.

In accordance with Article 13 of the Regulation, data submitted to ESMP complies with ISO standards for identification of medicinal products (IDMP), including ISO 11238:2018 (Substances), ISO 11239:2012 (Pharmaceutical dose forms, units of presentation, routes of administration and packaging), ISO 11240:2012 (Units of measurement), ISO 11616:2017 (Pharmaceutical products), and ISO 11615:2017 (Medicinal products), covering the SPOR domains: substance, product, organisation, and referential data.

In accordance with Article 13 of the Regulation and related implementing measures, the ESMP access framework enables data exchange that will:

- Increase access to information on shortages of medicinal products authorised for human use in the EU and EEA;
- Simplify the regulatory environment since data will be reviewed, assessed and approved as part of the new data operating model;
- Make regulatory action and decision-making more efficient thanks to improved data quality, integrity and reliability;
- Support meeting regulatory requirements more effectively by enabling secure, GDPR-compliant data exchange while maintaining appropriate data protection safeguards across EU systems.

4.2.3. Personal data protection

The protection of personal data is a fundamental right of all European citizens. The Agency, national competent authorities and marketing authorisation holders must ensure secure processing of personal data in ESMP through appropriate technical and organisational measures, in accordance with applicable data protection regulations:

- For the Agency: [Regulation \(EU\) 2018/1725 \(EU DPR\)](#)
- For competent authorities and marketing authorisation holders: [Regulation \(EU\) 2016/679 \(GDPR\)](#)

ESMP implements appropriate safeguards to protect against unauthorized access, ensuring personal data is processed lawfully, fairly, and transparently based on principles of necessity and proportionality. For detailed information on EMA's data protection practices, please refer to the Data Protection Notice available at: [Data protection and privacy | European Medicines Agency \(EMA\)](#).

4.2.4. ESMP access levels

Access to the ESMP is structured and defined based on the stakeholder's interests and needs as well as the requirements of the EU DPR and GDPR. This tiered approach ensures that data is shared appropriately, and the data privacy and security are maintained.

Annex A of this data access policy document lists all the ESMP data elements and outlines which can be accessed by the different stakeholder groups, based on the access levels described in Table 1.

Table 1 – Description of access levels in ESMP

Access level	Stakeholder
Level 1	• General public • Patient and Consumers • Health Care Professionals • Academia
Level 2	• Marketing authorisation holders

Access level	Stakeholder
	Contractors, vendors and other external service providers working for the above companies on ESMP matters
Level 3	- National competent authorities - Contractors and external service providers working for the above authorities on ESMP matters
Level 4	- European Medicines Agency - European Commission - Medicine Shortages Steering Group (MSSG)

ESMP data are classified as follow:

- Commercially Confidential Information (CCI): Information that requires restricted access due to business sensitivity (e.g., Manufacturing capacity data)
- Industry Public Information (IPI): Technical or regulatory information that is public but primarily used by industry stakeholders (e.g., PMS ID)
- General Public Information (GPI): Information intended for broad public access (e.g., Medicinal product full name, Marketing authorisation holder, shortage status)

4.2.5. Detailed description of access to data held in ESMP by access levels

The below sections provide detailed information on the level of accessibility of shortages data held in ESMP.

4.2.5.1. ESMP access level 1 – Public

In accordance with Article 6(6) of the Regulation, the general public (including patients, consumers, healthcare professionals and academia) shall have access to actual shortages of medicinal products included in the critical medicines lists where the Agency has assessed the shortage and provided recommendations.

The public is provided with access to shortage processed data, specifically through the [Shortages catalogue of ongoing and resolved shortages of human medicines assessed by EMA](#).

Access Level 1 is reserved to any stakeholders with interest in accessing public ESMP data for specific cases falling outside the regulatory scope, without the possibility to change the information therein. This level of access ensures transparency and keeps the public informed about medicine availability and related trends without compromising commercially confidential information or personal data.

Table 2 – Access to ESMP data by Level 1

Stakeholder	Access level	Access type
- General public - Patient and Consumers - Health Care Professionals - Academia - WHO	Public subset of all shortages of human medicinal products.	Not required/controlled

4.2.5.1.1. Personal data protection requirements

Data access and provision is based on each ESMP data set (Level 1) in compliance with the Regulation.

4.2.5.2. ESMP access level 2 – MAHs

In accordance with the Regulation, the organisations falling under this stakeholder group with interest in reporting and accessing shortages data on valid human medicinal products authorised shall have full access to public (Level 1) and restricted subsets of information reported in ESMP. Access level 2 is reserved to allow users to fulfil their legal obligation and responsibilities for their own products.

Marketing authorisation holders shall submit and monitor shortage-related information in accordance with the Regulation. Detailed operational procedures are documented in the ESMP [User guide for MAHs](#).

The access management in ESMP is a decentralised mechanism in which designated administrator(s) for each organisation decide whether to approve/deny subsequent ESMP access role requests.

MAHs require ESMP access to download, submit and manage data related to:

1. Crisis/MSSG-led preparedness - Availability information: data on medicine availability, stocks, supply forecasts, and other.
2. Crisis/MSSG-led preparedness - Marketing status for nationally authorised products (NAPs): information on the marketing status of NAPs.
3. Crisis/MSSG-led preparedness - Manufacturing information: details on manufacturing capacities and plans for centrally and nationally authorised products during crisis.
4. Crisis/MSSG-led preparedness - Alternative therapies: submission of data on alternative therapies available.
5. Preparedness - Routine shortage reporting: regular reporting of shortages to assist in preparedness activities.

MAH users are only entitled to access the data according to the Organisation(s) they have an affiliation. Furthermore, each MAH user can only access metadata on their own data submissions.

Table 3 – Access to ESMP data by Level 2

Stakeholder	Access level	Access type
- Marketing authorisation holders - Contractors, vendors and other external service providers working for the above companies on the ESMP subject	Full access to both public and restricted subsets of their own shortages of authorised human medicinal products to fulfil their legal responsibilities for their own products. This level has sub-levels of access: - Level 2a providing full access to commercially confidential information (CCI) for their own products. - Level 2b providing access to General Public Information (GPI) and Industry Public Information (IPI) only. Access to commercially confidential information (CCI) for other products is not granted.	Authorised personnel only

4.2.5.2.1. Personal data protection requirements

Data access and provision is based on each ESMP data set (Level 2) in compliance with the Regulation.

4.2.5.3. ESMP access level 3 – NCAs

In accordance with the Regulation, the organisations falling under this stakeholder group with interest in reporting and accessing supply and demand data on valid human medicinal products authorised shall have full access to public (Level 1) and restricted subsets of information reported in ESMP. Access level 3 is reserved to allow users to fulfil their legal obligation and responsibilities for centrally authorised products (CAPs) and nationally authorised products (NAPs) of their country.

For detailed procedures on submitting and retrieving data for stock and supply, patient estimations, demand forecasting, and medicine usage, please refer to the [User guide for NCAs](#), which outlines the specific steps and technical requirements.

The access management in ESMP is a decentralised mechanism in which designated administrator(s) for each organisation decide whether to approve/deny subsequent ESMP access role requests.

NCAs require ESMP access to download, submit and manage data related to:

1. Crisis - Stock and supply
2. Crisis - Patient estimation
3. Crisis - Medicine usage
4. MSSG-led preparedness – National demand

NCA users are entitled to access all the relevant data submitted by MAHs to support national and EU-level actions in response to potential or actual shortages of centrally authorised products (CAPs) and nationally authorised products (NAPs) of their country. This includes data needed for shortage prevention, mitigation, and management activities. Furthermore, each NCA user can access metadata information on data submissions executed by users of the NCA for which they have an affiliation.

Table 4 – Access to ESMP data by Level 3

Stakeholder	Access level	Access type
- National competent authorities - Contractors and external service providers engaged by the EMA or the NCAs for the ESMP are subject to specific contractual agreements that include data confidentiality, security, and compliance obligations. Their access to ESMP data and systems is granted strictly for the duration and scope of their contract and must adhere to all relevant policy requirements.	Full access to both public and restricted subsets of data for medicinal products that are authorised in their Member State/EEA country, including centrally authorised products (CAPs) and nationally authorised products (NAPs) under their jurisdiction, to fulfil their regulatory oversight responsibilities. This level has sub-levels of access: Level 3a providing full access to commercially confidential information (CCI) for centrally authorised products (CAPs) and nationally authorised products (NAPs) that are authorized in their Member State/EEA country; Level 3b providing access to General Public Information (GPI) and Industry Public Information (IPI) only. Access to commercially confidential information (CCI) for products authorized in other Member States/EEA countries (outside	Authorised personnel only

Stakeholder	Access level	Access type
	their jurisdiction) is not granted.	

4.2.5.3.1. Personal data protection requirements

Data access and provision is based on each ESMP data set (Level 3) in compliance with the Regulation.

4.2.5.4. ESMP access level 4 – EMA

In accordance with the Regulation, the organisations falling under this stakeholder group with interest in managing, monitoring and processing shortages data on valid human medicinal products authorised for the purpose of shortages management at the EU shall have full access to both public subset and restricted subset of all shortages of human medicinal product data elements without restrictions.

Access level 4 users are granted secure access to ESMP through appropriate authentication mechanisms. The Agency manages access rights through a decentralized administration model.

EMA users require ESMP access for:

1. Operational purposes: fulfilling the Agency's responsibilities in monitoring and managing medicine shortages at the EU level
2. Data analytics purposes: analyzing trends, identifying potential shortages, and supporting decision-making processes

Table 5 – Access to ESMP data by Level 4

Stakeholder	Access level	Access type
- Agency - European Commission - Medicine Shortages Steering Group (MSSG)	Full access to both public subset and restricted subset of all shortages of human medicinal product data elements without restrictions.	Authorised personnel only

4.2.5.4.1. Personal data protection requirements

Data access and provision is based on each ESMP data set (Level 4) in compliance with the Regulation.

Note: this guidance will be subject to revision and further releases based on the ESMP progresses and deliverables.

Annex A – Data elements accessible by ESMP access level

- R / C / U / D = Read, Create, Update, Delete
- Y/N = Yes, No